

that Calicraft meets the requirement of this ground.

The Court is not persuaded that the discovery disputes and delays articulated by Calicraft are sufficiently supported by facts that show diligence by Calicraft. Although counsel's declaration state otherwise, the Court is previously unaware of any discovery disputes, as the Register of Actions contains no discovery motions filed. Nonetheless, if discovery issues prevented preparation for trial, the Court would have expected motion practice to resolve these issues.

Based on the foregoing, the Court finds good cause to continue the trial date.

Ruling

1. Defendant Calicraft LLC's Motion to Continue Trial is **granted**.
2. The Court orders that Discovery is now **closed**, except for expert discovery.
3. Counsel are ordered to meet and confer to resolve any existing discovery disputes. Since Discovery is closed, no discovery motions will be entertained by the Court, with the exception of any discovery motions related to expert discovery. If the Parties are unable to resolve the discovery issues informally, they shall meet and confer to retain a discovery referee.
4. Counsel Josh Davis is ordered to provide additional information from his health care provider that verifies the facts set forth in his declaration filed on April 22, 2026 no later than fourteen (14) from the date of this order. Medical information may be submitted under seal by hard copy to Department 16.
5. The Parties are ordered to appear via Zoom on August 27, 2026 at 8:30 a.m. for a trial setting conference.
6. Calicraft's counsel shall prepare and e-file a proposed order conforming to this ruling approved as to form by Hermitage's counsel, no later than ten (10) days from the date of this hearing, attaching a copy of this tentative ruling.

11. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL**
FILED BY: WHEATON, R.N., JEFF
TENTATIVE RULING:

Summary

This tentative ruling is for Lines 11, 12 and 13. The following three (3) Motions are calendared for hearing on April 29, 2026:

1. Defendant Jeff Wheaton, R.N., ("Wheaton") motion to seal Plaintiff Michelle Daly's ("Plaintiff") medical records from Persons Plastic Surgery, Elite MD, Skin Spirit Inc., Portrait Health, and For Your Eyes Only, which Defendant seek to include as exhibits in Defendants Motion for Summary Judgment filed on December 16, 2025.

2. Defendant Michael Dean Vistnes M.D. and Dean Vistnes M.D. Inc.'s (Collectively, "Vistnes") motion to seal Plaintiff Michelle Daly's medical records from Persons Plastic Surgery, Elite MD, Skin Spirit Inc., Portrait Health, and For Your Eyes Only as exhibits in Defendants' Motion for Summary Judgment filed on December 30, 2025; and
3. Defendant Skin Spirt Essential LLC ("Skin Spirit Essential") motion to seal Plaintiff Michelle Daly's medical records from Persons Plastic Surgery, Elite MD, Skin Spirit Inc., Portrait Health, and For Your Eyes Only as exhibits in Defendants' Motion for Summary Judgment filed on December 31, 2025.

These motions are based on the legal theories that the confidentiality of medical records is governed under Federal law by the Health Insurance Portability and Accountability Act of 1996 (HIPAA) (45 C.F.R. 164.508) and under State law by the Confidentiality of Medical Information Act (CMIA) (Civil Code §§56-56.37.) This is a medical malpractice action in which Plaintiff's medical condition is at issue. As a result, Defendant must introduce into evidence Plaintiff's Sutter Roseville Medical Center medical records. Defendants argue that this motion to produce medical records under seal is an adequate measure to protect Plaintiff's privacy in her medical records and will also allow Defendant to abide by the applicable laws governing disclosure of such records. Defendant is not able to redact Plaintiff's medical records and still provide the Court with the requisite relevant information necessary for review in evaluating Defendant's Motion for Summary Judgment or, in the alternative, Summary Adjudication. Consequently, no less restrictive means exist, and this request is narrowly tailored. Moreover, there is no public interest or benefit to the public disclosure of Plaintiff's medical records.

In reviewing Plaintiff's papers, it appears that the Declaration of Plaintiff's counsel, Mark Rosenberg's, includes in its caption that Plaintiff opposes these Motions filed by the Vistnes parties, Skin Spirit Essential. But, Counsel does not oppose the Motions filed by Wheaton. However, upon review, there are no facts contained in the Rosenberg's declaration that address any of these three motions, nor is there a separate Memorandum of Points and Authorities that contain legal arguments on their merits. A caption opposing the motion is insufficient without an underlying Memorandum of Points and Authorities and substantive analyses and argument. Accordingly, the Court finds that there is no timely opposition addressing the arguments on the motions to seal Plaintiff's records.

On April 26, 2026, Defendants filed a reply brief asserting that Plaintiff filed no timely opposition.

Background

In this lawsuit, Plaintiff alleges that the Defendants committed medical malpractice and caused injury and emotion distress as a result of the cosmetic laser surgery to her face and eyes performed by Defendants. Plaintiff seeks damages from Defendants. Defendants filed these instant motions to seal records prior to and in conjunction with the hearing of their Motion for Summary Judgment.

Analyses

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253,

257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Even if the caption in Counsel Rosenberg’s declaration are deemed to be “oppositions” to two of the motions, which this Court does not find, they are still insufficient. It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; see also *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to raise facts, arguments, and failing to address the legal authorities in Defendants’ Motions, the Court finds that Plaintiff concedes all the contentions and arguments in the moving papers.

Applied here, the Court finds that failure to timely oppose the three motions, or to address any arguments raised by them in Rosenberg’s declaration, is a deemed to be her consent to the granting of three motions.

After reviewing the moving papers and applying the foregoing authorities, the Court finds good cause to grant Defendants’ motions to seal Plaintiff’s medical records from Sutter Roseville Medical Center.

Ruling

1. All three motions to seal are **granted**. The Court does not rule on the motion for summary judgment.
2. Defendant’s counsel is ordered to prepare and e-file a proposed order conforming to the tentative ruling, reviewed by Plaintiff’s counsel, no later than ten (10) days from the date of this hearing, attaching a copy of the tentative ruling.
3. The hearing on the motion for summary judgment / motion for summary adjudication is continued to July 22, 2026 at 9:00 a.m. in Dept. 16. As the motion is fully briefed, no further briefing will be accepted by the Court. Counsel are ordered to appear via Zoom or in person.

12. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL**
FILED BY: VISTNES, M.D., MICHAEL DEAN
TENTATIVE RULING:

See Line 11, above.